



2025:CGHC:1104

NAFR

HIGH COURT OF CHHATTISGARH AT BILASPUR

WPS No. 86 of 2025

1 - Keshar Singh Thakur S/o Shri Jainarayan Singh Thakur Aged About 78 Years Retired Fitter At Executive Engineer Public Works Department (E And M) Division Bilaspur District - Bilaspur (C.G.) Word No. 11, Tiur Para Riagarh Tahsil Raigarh District - Raigarh (C.G.)

... **Petitioner(s)**

versus

1 - State Of Chhattisgarh Through The Scretary Department Of Public Works Mahanadi Bhawan New Raipur District - Raipur (C.G.)
 2 - Engineer In Chief Department Of Public Works Nirman Bhawan North Block Naya Raipur (C.G.)
 3 - Chief Engineer Public Works Department (E And M) Bilaspur Zone District - Bilaspur (C.G.)
 4 - Executive Engineer Public Works Department (E And M) Division Bilaspur District - Bilaspur (C.G.)
 5 - Joint Director Treasury Account And Pension Bilaspur District - Bilaspur (C.G.)

... **Respondents**

(Cause-title taken from the Case Information System)

For Petitioner :- Mr. Jeet Ram Patel, Advocate

For State :- Mr. Soumitra Kesharwani, P.L.

SB- Hon'ble Shri Justice Amitendra Kishore Prasad

Order On Board

08.01.2025

1. By way of this writ petition, the petitioner has prayed for following reliefs:-

“10.1 That this Hon'ble Court may kindly be pleased to call for the entire records pertaining to the case of the petitioner.

10.2 That this Hon'ble Court may kindly be pleased to direct the respondents authorities to give benefit of leave encashment within stipulated time to the petitioner with interest, in the interest of the justice.

10.3 That, any other relief which the Hon'ble Court may deemed fit and proper also be granted to the petitioner, in the interest of justice.”

2. Learned counsel for the petitioner submits that petitioner is a retired employee of the respondent department, who was working as work charged / contingency paid employee in the Public Works Department. He submits that in the light of judgment passed by this Court in **Writ Petition (S) No.3870 of 2021 (Faguvaram Patel & Ors. Vs. State of Chhattisgarh & Ors.)** and other connected matters decided on 30.09.2022, the petitioner was entitled for leave encashment.
3. Learned State counsel submits that sufficient documents have not been filed by the petitioner and it is also not reflected as to whether the petitioner has completed the minimum period of the service to avail the benefit of leave encashment.
4. I have heard learned counsel for parties and perused the documents available in record.

5. Be that as it may, without commenting anything on the merits, this petition is disposed off giving liberty to the petitioner to make detailed representation before the concerned respondent / competent authority within the period of '**30 days**' from the date of receipt of copy of this order with all necessary documents to substantiate his claim. In the event of filing of representation, on due verification, if the petitioner is found to be similarly situated persons, as in the case of **Faguvaram Patel (surpa)**, his claim shall be decided by the respondents in light of judgment of **Faguvaram Patel (Supra)** expeditiously preferably within the period of '**90 days**' from the date of submission of the said representation.
6. Accordingly, this petition stands **disposed off** with aforesaid observations and directions.

sd/-

(Amitendra Kishore Prasad)
Judge

Vishakha